

Shree Badri Kedar Papers Private Limited v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 February 2025 · 2025:AHC:16049-DB · Writ-C No. 40278 of 2024 · **Unreasoned Clause 6.5 order quashed; remitted to Executive Engineer.**

HEADNOTE

An Executive Engineer's Clause 6.5 order on a billing objection, being devoid of reasons and showing no application of mind, was quashed and remitted for a fresh reasoned decision after hearing, within two months.

FACTUAL SUMMARY

The petitioner, a paper manufacturer, was aggrieved by a 2022 electricity bill. In Writ-C No. 6857 of 2022 the High Court on 5 July 2022 directed it to the Clause 6.5 authority. It later learned, in November 2024, of an order dated 27 August 2022 under Clause 6.5, obtained as a screenshot, and alleged the order contained no reasons. Counsel for the electricity corporation confirmed that was the only order and could not identify any reasons in it.

REUSABLE CONSTRUCTIONS

1. An Executive Engineer's Clause 6.5 order on a billing objection that is devoid of reasons and shows no application of mind is liable to be quashed. ¶ 4-6
2. On quashing, the billing objection is remitted to the Executive Engineer to decide afresh in accordance with Clause 6.5 after affording a full hearing. ¶ 4-6

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

An order of the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 that is devoid of reasons and shows no application of mind is liable to be quashed. The billing objection is remitted to the Executive Engineer to decide afresh in accordance with Clause 6.5, after affording a full hearing, within two months of a certified copy. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 2022 BILL / CLAUSE 6.5 OBJECTION

Left to the Executive Engineer on remand; the Court did not examine the bill. ¶ 4-6